

Galaxy Medical Alert Systems Ltd. Monitoring Services

Cellular-Based Solutions

The use of cellular-based solutions for personal emergency response systems includes additional risks associated with the quality and reliability of cellular signals and service. Cellular communications are affected by a number of factors outside the control of Galaxy Medical Alert Systems Ltd. and may be impaired or blocked by factors such as, building construction style, building materials, atmospheric conditions (i.e. weather), distance from transmitter to receiver, surrounding terrain battery life, signal strength, cellular network traffic, cellular tower condition, and interference from other cellular devices. In addition, cellular-based solutions rely on third party services from wireless carriers that are not controlled by Galaxy Medical Alert Systems Ltd. or its representatives.

Subscribers acknowledge that even if cellular solutions work well at the time of installation or activation, they are responsible for monitoring signal strength, power, and service quality on an on-going basis.

Galaxy Medical Alert Systems Ltd. is not responsible for maintaining or monitoring the networks used for communication, and can only provide timely and accurate response if all equipment and networks are working correctly and providing adequate signal strength.

Subscribers also acknowledge and understand that there may be additional issues related to sending information from the Personal Emergency Response System to the monitoring center over cellular networks beyond what is mentioned here.

Subscribers further understand that technology used for cellular communications can fail at any time, and they release Galaxy Medical Alert Systems Ltd., its staff, employees, owners, shareholders, officers, contractors, representatives and vendors from any and all liability related to the transmission of emergency signals or communications over cellular networks.

GPS Location Technology Services

Subscribers understand that certain solutions for mobile Personal Emergency Response Systems utilize the Global Positioning System (GPS) to provide location data. Subscribers acknowledge that GPS location tracking is reliant on third party technologies that are not under the control of Galaxy Medical Alert Systems Ltd. Any failure of these third party technologies or third party services could result in an inability to provide mobile PERS or GPS location tracking by Galaxy Medical Alert Systems Ltd.

Subscribers will hold Galaxy Medical Alert Systems Ltd. harmless for any failures by third parties that impact its ability to provide service.

GPS is a satellite navigation system that can determine a device's location by measuring the distance between itself and three or more GPS satellites. Galaxy Medical Alert Systems Ltd. uses commercially available technology and U.S. and Canadian Government owned satellites to generate location data for any GPS device that it monitors.

Subscribers acknowledge and accept that the use of GPS location technology includes a number of inherent risks, including but not limited to:

- Obstruction (such as buildings) can prevent satellites from accurately locating the GPS device
- Currently available GPS technology is only accurate to within 50 feet of the actual location
- Transmission requires power from the device's battery, so a low or defective battery may prohibit accurate transmission of location data
- Damage to the device or antenna could prevent accurate transmission of location data
- GPS satellites are controlled by the government and any restriction or reduction of service could limit GPS access to location information

Subscribers also acknowledge that using GPS tracking and location data may require Galaxy Medical Alert Systems Ltd. to disclose the location of the mobile PERS device to responders including police, fire, EMS and individual responders (such as family or caregivers) identified by the customer.

Subscribers assume the potential risks of releasing said location information and waive any and all claims related to privacy laws, including HIPAA, and any direct or indirect damages related to the release of such information.

Subscribers acknowledge that they have read the above and fully understand it. Subscribers further acknowledge that there are other risks involved in using GPS tracking and location technology and services beyond what is detailed herein.

Furthermore, Subscribers release Galaxy Medical Alert Systems Ltd., its staff, employees, owners, shareholders, officers, contractors, and vendors from any and all liability in regards to the transmission of an emergency signal, location information, or communication over the cellular network and Global Positioning System (GPS).

Broadband, Digital Phone and Voice Over Internet Protocol (VoIP) Service

Subscribers acknowledge that Galaxy Medical Alert Systems Ltd. and/or its representatives have explained the additional risks associated with using broadband phone, digital phone, or voice over Internet protocol (VoIP) services in association with Personal Emergency Response Systems. These

risks include, but are not limited to, loss of phone service due to power failure, loss of phone service from damaged or faulty modem equipment, failed communication or data transmission due to inadequate bandwidth or bandwidth management, loss of service due to atmospheric conditions (i.e. weather), and network disruption or data loss during transmission over digital networks.

Subscribers acknowledge that digital phone and VoIP services are reliant on third party technologies that are not under the control of Galaxy Medical Alert Systems Ltd.

Any failure of these third party technologies or third party services could result in an inability to provide timely and adequate response by Galaxy Medical Alert Systems Ltd. Subscribers will hold Galaxy Medical Alert Systems Ltd. harmless for any failures by third parties that impact its ability to provide service.

Subscribers also understand that even if digital or VoIP solutions work well at the time of installation or activation, Subscribers are responsible for monitoring signal strength, equipment function, power/battery, and service quality on an on-going basis.

Galaxy Medical Alert Systems Ltd. is not responsible for maintaining or monitoring the reliability of the networks used for communication, and can only provide a timely and accurate response if all equipment and networks are working correctly and providing adequate signal strength and complete data transmission. Users of digital and VoIP solutions should test their service on a regular basis to identify any problems or deterioration of network service and signal strength.

Subscribers certify that they will not use any caller ID blocking equipment or services at any time.

Subscribers also acknowledge and understand that there may be additional issues related to sending information from the Personal Emergency Response System to the monitoring center over digital or VoIP networks beyond what is mentioned here.

Subscribers further understand that technology used for digital and VoIP communications can fail at any time and release Galaxy Medical Alert Systems Ltd., its staff, employees, owners, shareholders, officers, contractors, representatives and vendors from any and all liability related to the transmission of emergency signals or communications over digital and VoIP networks.

In response to the increased risks associated with using digital phone or VoIP service, Galaxy Medical Alert Systems Ltd. provides additional service options (listed below). Subscribers acknowledge that they have been informed of these options and understand the risks and ramifications of their choice of service.

Option 1: Personal Emergency Response System programmed specifically for use with broadband based dial-tone (VoIP service)

This service option is available if the equipment type used by the subscriber or required by the agency is capable of performing two separate rate actions based on the type of communication required. However, it must be chosen at the time of installation to allow for special programming and setup by Galaxy Medical Alert Systems Ltd. and its representatives. This option reduces the risk of data loss or transmission failure due to bandwidth management, but does not eliminate the risks associated with loss of power, loss of phone service, or damage to modem equipment.

Option 2: Personal Emergency Response System plugged into adaptive device to bypass broadband based dial-tone (VoIP service)

This service option requires an additional adaptive device and uses a high-speed Internet connection to bypass the use of digital or VoIP services.

The additional equipment and service requires payment of additional fees and the acceptance of risks associated with data transmission over a high-speed Internet connection. This option does not allow PERS equipment to report maintenance alarms such as low battery, and does not eliminate risks associated with loss of phone service or damage to modem equipment.

Option 3: Personal Emergency Response System plugged directly into subscriber's broadband based dial-tone (VoIP service)

This service option does not require any special equipment or programming. This option relies completely on the reliability and success of the third party networks providing digital phone and VoIP services for transmission of emergency signals and data. This option does not eliminate the risks associated with loss of phone service due to power failure, loss of phone service from damaged or faulty modem equipment, failed communication or data transmission due to inadequate bandwidth or bandwidth management, loss of service due to atmospheric conditions (i.e. weather), and network disruption or data loss during transmission over digital networks.

Subscribers acknowledge that they have read the above and fully understand it. Subscribers further acknowledge that there may be other issues involved in sending information from the emergency unit to the monitoring center even beyond what is mentioned here and that the technology is yet unproven. Subscribers release Galaxy Medical Alert Systems Ltd., its staff, employees, owners, shareholders, officers, contractors, and vendors from any and all liability in regards to the sending of a help signal over digital phone or VoIP networks and their supporting systems.

High-Speed Internet or DSL-Based Solutions

Subscribers acknowledge and understand the use of high-speed Internet or DSL-based solutions for Personal Emergency Response Systems include additional risks associated with the quality of network connections, signal integrity, and service levels. Internet communications are affected by a number of factors outside the control of Galaxy Medical Alert Systems Ltd. and may be impaired by factors such as, distance from transmitter to receiver, signal strength, network traffic, damage to network equipment and interference from other devices.

Subscribers also understand that Internet-based solutions rely on third party technologies and services that are not under the control of Galaxy Medical Alert Systems Ltd. or its representatives. Any failure of these third party technologies or third party services could result in an inability to provide services by Galaxy Medical Alert Systems Ltd. Subscribers will hold Galaxy Medical Alert Systems Ltd. harmless for any failures by third parties that impact its ability to provide service.

Subscribers understand that even if Internet-based solutions work well at the time of installation or activation, they are responsible for monitoring signal strength, equipment function, and service quality on an on-going basis.

Galaxy Medical Alert Systems Ltd. is not responsible for maintaining or monitoring the reliability of the networks used for communications and can only provide a timely and accurate response if all equipment and networks are working correctly and providing adequate signal strength and complete data transmission. Users of Internet-based solutions should test their service on a regular basis to identify any problems or deterioration of network service.

Subscribers acknowledge and understand that there may be additional issues related to sending information from the Personal Emergency Response System to the monitoring center using internet based solutions beyond what is mentioned here.

Subscribers further understand that technology used for cellular communications can fail at any time, and release Galaxy Medical Alert Systems Ltd., its staff, employees, owners, shareholders, officers, contractors, representatives and vendors from any and all liability related to the transmission of emergency signals or communications over cellular networks.

Monitored Medication Management Systems

Subscribers authorize Galaxy Medical Alert Systems Ltd. to install a monitored Medication Management System consisting of a medication dispenser, a Personal Emergency Response System (PERS), and/or any other communication device in their homes that may be necessary to transmit information from the medication dispenser to the monitoring center.

It is understood that Subscribers or their caregivers are responsible for refilling the medication dispenser and/or reprogramming the dispensing unit on an on-going basis. Neither Galaxy Medical Alert Systems Ltd. nor its representatives are responsible for refilling the Medication Management System or reprogramming the unit based on changes in my medication and/or my medication schedule.

Furthermore, the Medication Management System is designed to remind Subscribers to take their medications, and that Galaxy Medical Alert Systems Ltd. is not responsible for Subscribers failure to do so, whether as a result of a malfunction of the Medication Management System or otherwise.

Additionally, Subscribers understand that their Medication Management System will automatically communicate with a 24-hour monitoring center via telephone, Internet, SMS, wireless or other communication methods, in order to report certain conditions.

Subscribers understand that these communication methods may not be secure and that the transmission of this information is not a violation of their privacy.

The Medication Management System has been tested in their homes, and they agree not to relocate the unit or alter any of the communication devices, networks, or systems, as it may affect the functionality and operation of the Medication Management System.

Subscribers accept responsibility for contacting Galaxy Medical Alert Systems Ltd. should they require additional instruction on the use or functions of the Medication Management System. Either Subscribers or their caregivers understand the operations of the system and have reviewed and complied with the following:

Subscriber and/or Caregiver is responsible for filling and programming the Medication Management Systems

Subscriber and/or Caregiver has been instructed in the use of the Medication Management System

Subscriber and/or Caregiver understands not to move, disconnect, or alter the communication networks of the Medication Management System